

DATE RECEIVED • OFFICE USE ONLY



BUILDING PERMIT APPLICATION

LAND USE DEPARTMENT • BUILDING SAFETY & INSPECTION SERVICES DIVISION
2045 13th Street • 13th & Spruce Streets • P.O. Box 471 • Boulder, Colorado 80306
(303) 441-3925

CONTACT: *DAVID STOCKBRIDGE*
720 303 6738

BP-00- 1207

PROJECT LOCATION

PROJECT STREET ADDRESS <i>5134 Ute Highway</i>		LOT	BLOCK	SUBDIVISION	
CITY/ZIP CODE <i>LYONS, CO 80540</i>		SECTION		TOWNSHIP	RANGE
OWNERSHIP			CONTRACTOR		
OWNERS NAME <i>Southdown Inc</i>		DAY PHONE NUMBER <i>720.320.6738</i>		CONTRACTORS NAME <i>New CC INC</i>	
ADDRESS <i>5134 Ute Highway</i>		NIGHT PHONE NUMBER		DAY PHONE NUMBER <i>303 941 0988</i>	
CITY <i>LYONS</i>		STATE <i>CO</i>		ZIP CODE <i>80540</i>	
FAX NUMBER		CITY <i>BOULDER</i>		STATE <i>CO</i>	
FAX NUMBER		ZIP CODE <i>80329</i>		FAX NUMBER	

DESCRIBE THE PROJECT

Cellular Antenna Sites

ESTIMATED COST
\$ *106,963*

TYPE OF PROJECT (✓ One)	TYPE OF STRUCTURE (✓ One)
☐ (01) New Structure ☐ (02) Addition To: ☐ (03) Remodel ☐ (04) Electrical ☐ (07) Demolition of Structure ☐ (08) Change of Use ☐ (09) Moved-In Structure	☐ (01) One Family Dwelling ☐ (02) Two Family or Attached Dwelling (Including Townhouse) ☐ (03) Three & Four Family Dwelling ☐ (04) Hotel or Motel ☐ (06) Amusement & Recreation Building ☐ (07) Church & Other Religious Building ☐ (08) Industrial Building, Manufacturing Plant, Factory ☐ (09) Service Station & Repair Garage ☐ (10) Detached Garage ☐ (12) Office, Bank, and Professional Building ☐ (13) School ☐ (14) Store, Customer Service ☐ (15) Barn, Storage Shed, Outbuilding ☐ (16) Mobile/Manufactured Home ☐ (22) Public Works, Utility Building ☐ (23) Pool, Hot Tub, Fence, Retaining Wall, Pump (Non-Structure) ☐ Other: _____

EXISTING		TO BE CONSTRUCTED		COMPLETE ONLY FOR NEW PROJECT			
HEIGHT OF STRUCTURE		FT		STRUCTURE SIZE		FINISHED	UNFINISHED
NUMBER OF BEDROOMS				BASEMENT		SQ. FT.	SQ. FT.
NUMBER OF BATHROOMS				1ST STORY		SQ. FT.	SQ. FT.
PROPERTY SIZE:				2ND STORY		SQ. FT.	SQ. FT.
SETBACKS (Distance of Project to Property Lines)				3RD STORY		SQ. FT.	SQ. FT.
FRONT SETBACK EXISTING		SIDE SETBACK EXISTING		OTHER STORIES		SQ. FT.	SQ. FT.
REAR SETBACK EXISTING		FRONT SETBACK PROPOSED		GARAGE		SQ. FT.	SQ. FT.
SIDE SETBACK PROPOSED		SIDE SETBACK PROPOSED		DECK		SQ. FT.	COVERED DECK
REAR SETBACK PROPOSED		REAR SETBACK PROPOSED				SQ. FT.	SQ. FT.
WATER SERVICE (✓ One)		SEWER SERVICE (✓ One)		ELECTRICAL SERVICE (✓ One)		GAS SERVICE (✓ One)	
ACCESS (✓ One)							
☐ INDIVIDUAL WELL ☐ COMMUNITY WELL ☐ N/A ☐ PUBLIC: _____		☐ SEPTIC TANK ☐ VAULT ☐ N/A ☐ PUBLIC: _____		☐ PUBLIC SERVICE COMPANY ☐ UNITED POWER ☐ ESTES PARK ☐ POUDRE VALLEY REA ☐ LONGMONT ☐ N/A		☐ PUBLIC SERVICE COMPANY ☐ PROPANE ☐ N/A ☐ OTHER: _____	
☐ EXISTING DRIVEWAY ☐ NEW DRIVEWAY ☐ N/A ☐ OTHER: _____							

CERTIFICATION

I hereby certify that the above information is correct and agree to construct this building in accordance with the plot, building plans and specifications submitted herewith, and in strict compliance with all the provisions of the Zoning Ordinance, Building Code, Electrical Code, and Health and Plumbing Regulations of the County of Boulder.

OWNER/AGENT'S SIGNATURE <i>David Stockbridge</i>	DATE <i>7.5.00</i>	TITLE <i>Proj Manager</i>
---	-----------------------	------------------------------

SP-00-1207

ASR ID 0053049 Suffix 01 Parcel No 120328000001 City Cd LG Nbr Id 290

Tax Area Id 2800

Street Address 5134 UTE HY

Sub Name TR, NBR 990 COMMERC

Sub Lot Sub Block S-T-R 28-3N-70

Legal Desc 21-3N-70, 28-3N-70, 29-3N-70 SE 1/4 SE 1/4 20-3N-70 & PT W 1/2 27-3N-70 & E 500
FT OF LESS .19 ACS M/L TO CO OF BO & LESS PTS TO US TOTAL 758.99 SEE SPLIT
ID 128969.

Owner Name SOUTHDOWN INC

In Care Of

Owner Address PO BOX 529

LYONS, CO 80540-0529

Land Class Cd 3115

Bldg Class Cd 3215 Design Cd C

Built Yr 1969

Rooms 0

Bedrooms 0 Half Baths 0

3/4 Baths 0

Full Baths 0

First Fl Fin Sqft 181928

First Fl Tot Sqft 181928

Above Fin Sqft 0

Above Tot Sqft 0

Bsmnt Fin Sqft 0

Bsmnt Tot Sqft 0

Garage Fin Sqft 0

Garage Tot Sqft 0

Other Fin Sqft 0

Other Tot Sqft 0

Land Act Val \$ 2, 820, 500

Bldg Act Val \$ 8, 910, 500

Land Asd Val \$ 817, 950

Bldg Asd Val \$ 2, 584, 050

Deed1 No 1756839

Deed1 Dt 19-DEC-97

Deed1 Fee \$.00

Deed2 No 1477357

Deed2 Dt 07-NOV-94

Deed2 Fee \$.00

Deed3 No 1432787

Deed3 Dt 01-JUN-94

Deed3 Fee \$ 81.80

Deed4 No 1284471

Deed4 Dt 21-APR-93

Deed4 Fee \$.00



BUILDING PERMIT APPLICATION REVIEW FORM

COMPLETE SPACES IF DIFFERENT FROM APPLICATION

FILE NUMBER

00-1207

PROJECT LOCATION

PROJECT ADDRESS			APARTMENT #			CITY		ZIP CODE	
5134 Ute Hy									
LOT	BLOCK	SUBDIVISION NAME			SECTION	TOWNSHIP		RANGE	

OWNER'S NAME				CONTRACTOR'S NAME			

ACTIVITY CODE	DESCRIPTION CODE	OCCUPANCY GROUP	TYPE OF CONSTRUCTION			VALUATION
		0-1				\$ 106,963

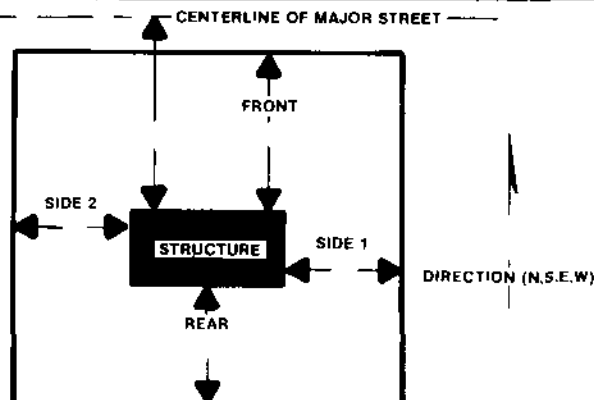
STRUCTURE DATA		EXIST'G	TO BE CONSTRUCTED	STRUCTURE SIZE (For New Construction & Additions Only)		EXIST'G	NEW
HEIGHT OF STRUCTURE		FT	FT	BASEMENT		SQ FT	SQ FT
NUMBER OF STORIES			1	1ST FLOOR	128	SQ FT	SQ FT
NUMBER OF DWELLINGS				2ND FLOOR		SQ FT	SQ FT
NUMBER OF BEDROOMS				ALL OTHER FLOORS		SQ FT	SQ FT
NUMBER OF BATHROOMS				OTHER		SQ FT	SQ FT
PROPERTY SIZE	ACRE(S)			OTHER		SQ FT	SQ FT
FRONT SETBACK EXISTING	SIDE SETBACK EXISTING	SIDE SETBACK EXISTING	REAR SETBACK EXISTING	TOTAL(S)		SQ FT	SQ FT
FT	FT	FT	FT			SQ FT	SQ FT
FRONT SETBACK PROPOSED	SIDE SETBACK PROPOSED	SIDE SETBACK PROPOSED	REAR SETBACK PROPOSED				
FT	FT	FT	FT				

WATER:	CODE	PERMIT #	DATE OF PERMIT	SEWER:	CODE	PERMIT #	DATE OF PERMIT	ACCESS:	CODE	PERMIT #	DATE OF PERMIT
ELECTRIC:	CODE			GAS:	CODE			SOLAR:	CODE		

TAX ID #	PARCEL #	DEED #	TAX AREA	COMMISSIONERS DISTRICT	
SERVICE AREA	TRAFFIC ZONE	SCHOOL DISTRICT	FIRE DISTRICT	CENSUS TRACT	

PROPERTY SIZE	ZONING (1)	ZONING (2)	ZONING (3)	PARKING SPACES REQUIRED	PARKING SPACES PROVIDED
ACRE(S)	ACRE(S)	ACRE(S)	ACRE(S)		
ESCROW #1	NAME			ACCOUNT #	AMOUNT
					\$
ESCROW #2	NAME			ACCOUNT #	AMOUNT
					\$
ESCROW #3	NAME			ACCOUNT #	AMOUNT
					\$

00-96-30



Building Permit Routing Form

BP-00- 1207

Permit Tech (S)

Owner Name SOUTHDOWN INC.

(SU-98-30)

Project Description CELLULAR ANTENNA SITES

Fees:

Application Deposit \$ 21
 Building Division Fees \$ 1173.92
 Investigation Fee \$ _____
 Access Fee \$ _____
 Floodplain Fee \$ _____

Subtotal \$ _____
 Less deposit - \$ _____
 BALANCE DUE: \$ 1152.92

Permit Tech comments:

call David Stockbridge @ 720 320 6738
when approved

Zoning Approval

SPR req'd _____ zoning affidavit _____ height survey req'd _____ setback survey req'd _____
 Comments: _____

7-10-00
 approved by/date

DC

Historic Approval

Comments: _____

approved by/date

Site Plan Review

Site Plan Review # _____ notified owner/date: _____ notified contractor/date: _____

Comments: _____

approved by/date

Transportation Approval

access permit # _____ road maint waiver req'd _____ inspection req'd prior to CO _____

Comments: _____

approved by/date

Floodplain

floodplain permit # _____ Comments: _____

approved by/date

Plan Check

Soils Report Info: Caiss _____ Spd Ftgs _____ Per.Drain _____ Voids _____ Float.Slabs _____

Comments: _____

approved by/date

Chief Building Official

Comments: _____

Aug 8/17
8/18/00
 approved by/date

SPR

zoning

transportation

well/water

septic/sanitation

access permit

road maint waiver

notification: called (whom? _____)

sent card

mailed permit

Zoning info

01207

ID:

MAR 17 '00 10:02 Ng.004 P.01

FAX TRANSMISSION

LAND USE DEPARTMENT

PO Box 471
BOULDER, CO 80306
303 441 3930
Fax: 303 441 4858

To: Jill Cleveland

Date: March 17, 2000

Fax #: 303-313 8025

Pages: 1, including this cover sheet.

From: David Callahan

Subject: Modification to SU-96-30

COMMENTS:

This confirms that we have received your request to move one sector of antennas on Southdown's concrete silos from the present location on the silo to the elevator shaft, and that we consider this as a minor modification that does not require an amendment to the special use approval.

VOICESTREAM WIRELESS

TRANSMITTAL SHEET

TO:	DAVID CALLAHAN	FROM:	Jill Cleveland
COMPANY:	BOULDER COUNTY PLANNING DEPT.	DATE:	March 14, 2000
PHONE NUMBER:	303-441-3930	SENDER'S REFERENCE NUMBER:	DN3035D
RE:	VoiceStream Project at Southdown, INC.	TOTAL NO. OF DOCUMENTS:	1

☐ URGENT ☒ FOR REVIEW ☐ PLEASE COMMENT ☒ PLEASE REPLY ☐ PLEASE RECYCLE

NOTES/COMMENTS

Dave, thank you for meeting with me Friday to review two projects I have coming to Boulder County for review and approval.

The enclosed drawings are for our proposed site at Southdown, INC. located at 5134 Ute Hwy., Lyons. As discussed, the only change to this design from our earlier approval is the moving of one sector of antennas to the elevator shaft. The rest of the proposed antennas remains on the water tank on top of the silos. For reference, the previous case no. is SU-96-30.

I would like a letter/memo or word from you that this meets with the intent of the original zoning approval and we can proceed to building permit application once we have a set of construction drawings. Please call me should you have any questions. Thanks again for your assistance.

**DEVELOPMENT AGREEMENT
RELATING TO DEVELOPER'S OBLIGATIONS IN
SU-96-30: SOUTHDOWN INC. ROOFTOP ANTENNA**

THIS "AGREEMENT" is made on this 24TH day of April, 1997, by and between the Board of County Commissioners of Boulder County, Colorado, hereinafter referred to as "County," and Western PCS III License Corporation, hereinafter referred to as "Developer", and Southdown, Inc., hereinafter referred to as "Owner."

RECITALS:

WHEREAS, Developer and Owner and Owner have submitted to County for approval of Docket #: SU-96-30, hereinafter referred to as "Development," and

WHEREAS, County has fully considered the proposed Development and the requirements to be imposed upon the land and properties by reason of the proposed development; and

WHEREAS, County is has fully considered the proposed Development and the requirements to imposed upon the land and properties by reason of the proposed Development; and

WHEREAS, County is willing to approve the Development upon the agreement of the Developer and Owner to the matters herein described; and

WHEREAS, County, Developer and Owner mutually acknowledge and agree that the matters hereinafter set forth are reasonable conditions and requirements to be imposed by the County in connection with its approval of the development, and that such matters are necessary to protect, promote and enhance the general welfare; and

WHEREAS, County has determined that this Agreement is consistent with the Boulder County Comprehensive Plan and applicable County regulations,

NOW, THEREFORE, in consideration of the premises, the mutual covenants herein contained and the approval of the development, it is agreed as follows:

AGREEMENT:

1. TYPE OF DEVELOPMENT: The construction and placement of a non-exclusive wireless telecommunication facility located at the Southdown Inc., 5134 Ute Highway, Longmont, CO as described and approved in Docket #: SU-96-30. Development shall be consistent with the commitments of record and conditions of approval established in Special Use approval of Docket #: SU-96-30: SOUTHDOWN INC. Rooftop Antenna and with the attached site plans (Exhibit A), and the attached co-location statement (Exhibit B), all of which are incorporated into this agreement by this reference. Resolution 97-34 approving the Development is attached to and incorporated into this Agreement as Exhibit A, and Exhibit B.

2. Developer and Owner will mount all support structures, wiring conduit and antennas as flush to the side as possible. Developer and Owner will paint all support structures, wiring conduit and antennas to match the existing structure.

3. The Developer and Owner shall agree to allow co-location of other telecommunication providers if reasonable accommodations can be reached subject to the applicable County review process.

4. The County may conduct a periodic review of the status of the Development said review to occur as necessary to enforce the terms of this Agreement.

5. In consideration of the above conditions and covenante, the County agrees to grant a vested property right for the Development to proceed pursuant to the terms of this Agreement. The approval shall have a term of three (3) years subject to the provisions for modification and termination contained herein. The Developer and Owner may request an extension of said vested right.

6. The vested property right granted herein shall be terminated if the County determines that the Developer and Owner are not in good faith compliance with the terms of this Agreement.

7. Subsequent regulations enacted by the County shall be applicable to the Development if necessary to protect the health and safety of the inhabitants of the County or if general in nature and applicable to all properties subject to County land use regulations.

8. The Developer and Owner shall participate in the appropriate road impact fee fund if and when the County adopts a county-wide impact fee system prior to the issuance of building permits pursuant to this Agreement.

9. This Agreement may be canceled or amended on the mutual consent of the parties or to bring the Development into conformance with federal or state law.

10. Compliance with the terms of this Agreement may be enforced by any legal means, including but not limited to, termination of the vested right granted herein, revocation of Developer's approval, denial of building permits, or action for breach of contract.

11. The terms and conditions of this Agreement shall be covenants which run with the land and inure to the benefit of and are binding upon heirs, successors in interest and assigns of the parties hereto.

13. **ENFORCEMENT:** The County or any purchaser of any land subject to the restrictions or requirements of this Agreement shall have the authority to bring an action in Boulder District Court to compel the enforcement of this Agreement and the restrictions and requirements herein provided for. If the property becomes included within the boundaries of any city or town, the County's right to enforce this Agreement shall automatically pass to the governing body of the city or town. The County alone shall have the right to waive its rights to enforce this Agreement or to modify the same with the consent of the Developer and Owner, without obtaining the consent of any other entity or person; provided that if the property becomes included within the boundaries of any city or town, such rights of the County shall automatically pass to the governing body of the city or town.

14. **RECORDATION:** The Developer and Owner shall file for recording with the Boulder County Clerk and Recorder this Development Agreement, reduced site plan and/or any other documents required as part of the approval by the Board of County Commissioners of the above referenced development.



Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930
March 27, 1997

Western Wireless PCS III Licensed Corporation
2323 Delgany Street
Denver, CO 80216

Keidi Dragon
Koll Real Estate Services
2323 Delgany Street
Denver, CO 80216

Dear Applicant(s):

This letter certifies that a hearing of the Board of County Commissioners, County of Boulder, State of Colorado, was duly called and held on January 30, 1997, in consideration of the following request:

Docket SU-96-30: SOUTHDOWN, INC. Roof Top Antenna

Request: Special Use Review / Site Specific Development Plan for a Telecommunications Facility to place antennas on an existing cement silo exceeding the height limitation of the zoning district

Location: At 5134 Ute Highway, south of Ute Highway (State Hwy. 66), approximately 3/4 mile east of the Hwy. 66 / Hwy. 36 intersection, in Section 21, T3N, R70W

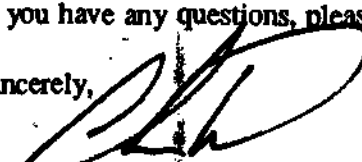
Zoning: General Industrial (GI)

The Board of County Commissioners **APPROVED** the request, subject to the conditions that:

1. That the antennas and all support structures and wiring conduit be mounted as flush to the silo walls as possible, and painted to match the existing structure.
2. That the applicant submit a Development Agreement to be reviewed and approved by the County Attorney and Land Use staffs prior to recording.
3. The applicant shall agree to allow co-location of other telecommunication providers if reasonable accommodations can be reached, subject to the applicable County review process.
4. The applicant shall be subject to the terms, conditions, and commitments of record for Docket SU-96-30: Southdown, Inc. Rooftop Antenna.

If you have any questions, please feel free to contact the Land Use Department at (303) 441-3930.

Sincerely,


Chris Toebe, Planner II
Current Planning Division

cc: Southdown, Inc.

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

g:\ud\shared\okts.m-z\southdown.ba
Paul Danish
County Commissioner

RESOLUTION 97-34

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKET #SU-96-30 ("SOUTHDOWN, INC., ROOFTOP ANTENNA SPECIAL USE"): A SPECIAL USE REQUEST, WITH ASSOCIATED SITE SPECIFIC DEVELOPMENT PLAN, FOR CONSTRUCTION OF A TELECOMMUNICATIONS FACILITY FOR PERSONAL COMMUNICATION SERVICES ON PROPERTY LOCATED AT 5134 UTE HIGHWAY, SOUTH OF UTE HIGHWAY (STATE HIGHWAY 66), APPROXIMATELY THREE-QUARTERS OF A MILE EAST OF THE HIGHWAY 66/HIGHWAY 36 INTERSECTION, IN SECTION 31, T3N, R70W.

WHEREAS, Western Wireless PCS III Licensed Corporation and Southdown, Inc. ("Applicants"), have requested approval for a special use permit, with associated site specific development plan, to construct a telecommunications facility on the property which is located as described in the caption to this Resolution, above ("the Subject Property"), and which is used for operation of a cement plant, in the General Industrial Zoning District in unincorporated Boulder County; and

WHEREAS, the facility will consist of three arrays of three-panel antennas (nine total), with each panel antenna measuring 52.1 inches x 7.8 inches x 1.5 inches, mounted on the sides and near the top of an existing 34-foot high, 50,000 gallon water tank, with the tank being located on top of an existing 150-foot cement silo, and additionally consisting of a 200-square foot, 8-foot high equipment building to be located on top of the silo; and

WHEREAS, because the water-tank mounted antennas will extend approximately 180 feet high, placing them in violation of the 50-foot height limitation of the zoning district, the Applicants are requesting the required Special Use Review; and

WHEREAS, the Applicants will lease the applicable silo space and necessary access and utility easements, with site access being off Ute Highway; and

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SU-96-30 ("the Docket"), all as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Boulder County Board of County Commissioners ("the Board") dated January 30, 1997, with its attachments ("the Staff Recommendation"); and

WHEREAS, on December 18, 1996, the Boulder County Planning Commission ("the Planning Commission") held a duly-noticed public hearing on the Docket, and recommended conditional approval of the Docket to the Board; and

WHEREAS, on January 30, 1997, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation and the recommendation of the Planning Commission, and also considered the documents and testimony presented by the County Land Use Department Planning Staff, as well as the Applicants' agent; and

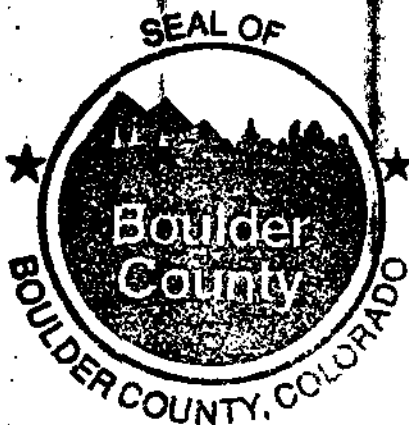
WHEREAS, based on the Public Hearing, the Board finds that the Docket meets the criteria for special use approval set forth in Article 4 of the Boulder County Land Use Code ("the Land Use Code"), and can be approved, subject to the conditions stated below; and, further, that the Docket, with the submission of the standard development agreement, meets the criteria in the Land Use Code for a site-specific development plan, subject to the conditions stated below.

NOW, THEREFORE, ss IT RESOLVED that the Docket is hereby approved, on the basis set forth in this Resolution, above, and subject to the following conditions:

1. The antennas and all support structures and wiring conduit shall be mounted as flush to the silo walls as possible and painted to match the existing structure.
2. The Applicants shall submit a Development Agreement to be reviewed and approved by the County Attorney and Land Use staffs prior to recording.
3. The Applicants shall agree to allow co-location of other telecommunication providers if reasonable accommodations can be reached, subject to the applicable County review process.
4. The Applicants shall be subject to the terms, conditions, and commitments of record for the Docket.

A motion to approve the Docket, as stated above, was made by Commissioner Danish, seconded by Commissioner Hendez, and passed by a 3-0 vote.

ADOPTED this 25th day of February, 1997, nunc pro tunc
the 30th day of January, 1997.



BOARD OF COUNTY COMMISSIONERS
OF BOULDER COUNTY:

Ronald K. Stewart
Ronald K. Stewart, Chair

Jana L. Mendez
Jana L. Mendez, Vice Chair

Paul D. Danish
Paul D. Danish, Commissioner

ATTEST:

Susan M. Schmitt
Clerk to the Board

OWNER:
By: John W Lohr
Title: PLANT MANAGER

STATE OF COLORADO
COUNTY OF BOULDER

On this 14TH day of APRIL, 1997, before me personally appeared JOHN LOHR, known to me to be the PLANT MANAGER of SOUTHDOWN, INC. the _____ that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said Development Agreement for the uses and purposes therein mentioned, and an oath, stated that JOHN LOHR was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day an year first above written.

Phyllis E. Patrick
NOTARY PUBLIC in and for the State of Colorado
My commission expires 2/13/1999



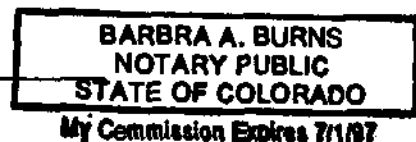
DEVELOPER:
By: Peter Van Winkle
Title: Director

STATE OF Colorado
City of Denver
COUNTY OF Denver

On this 15 day of April, 1997, before me personally appeared Peter Van Winkle, known to me to be the Director of Western PCS III License Corporation, the person that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said Development Agreement for the uses and purposes therein mentioned, and an oath, stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day an year first above written.

Barbra A. Burns
NOTARY PUBLIC in and for the State of Colorado
My commission expires _____



Development Agreement
SU-96-30: SOUTHDOWN INC. Rooftop Antenna
Page 4 of 4

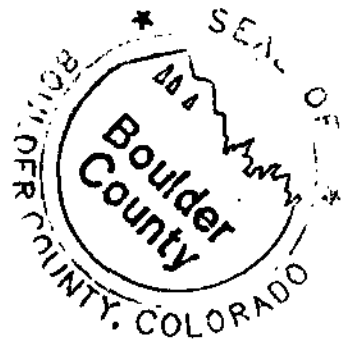
BOULDER COUNTY:

By:

Ronald Stewart
CHAIR, BOULDER COUNTY BOARD OF COUNTY COMMISSIONERS

ATTEST

Ann Messerschmidt
CLERK OF THE BOARD



STATE OF COLORADO

COUNTY OF BOULDER

On this _____ day of _____, 1997, before me personally appeared _____, known to me to be the _____ of _____ the _____ that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said Development Agreement for the uses and purposes therein mentioned, and an oath, stated that _____ was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

NOTARY PUBLIC in and for the State of _____

My commission expires _____



Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex

2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

BOARD OF COUNTY COMMISSIONERS

AGENDA ITEM

JANUARY 30, 1997 -- 9:00 AM

Hearing Room, Third Floor, County Courthouse, Boulder

PUBLIC HEARING

STAFF PLANNER: Chris Toebe

STAFF RECOMMENDATION

Docket SU-96-30: SOUTHDOWN, INC. Roof Top Antenna

Request: Special Use Review / Site Specific Development Plan for a Telecommunications Facility to place antennas on an existing cement silo exceeding the height limitation of the zoning district.

Location: At 5134 Ute Highway, south of Ute Highway (State Hwy. 66), approximately ¾ mile east of the Hwy. 66 / Hwy. 36 intersection, in Section 21, T3N, R70W

Zoning: General Industrial (GI)

Applicant: Western Wireless PCS HI Licensed Corporation

Agent: Keith Dragon / Koll Real Estate Services

Planning Commission: Recommendation of conditional approval -- December 18, 1996

PROPOSAL

Western Wireless is requesting approval of a Special Use / Site Specific Development Plan for a telecommunications facility to locate a Personal Communication Services (PCS) site on property at 5134 Ute Highway (State Highway 66), owned by Southdown Incorporated, and operated as a cement plant. The proposed site will have three arrays of three panel antennas (nine total) located on an existing 34 foot high, 50,000 gallon water tank. The water tank is located on top of an existing 150 foot cement silo. A 200 square foot equipment building, 8 feet in height is proposed to be located on top of the silo. The dimensions of each panel antenna are 52.1" x 7.8" x 1.5". The antennas will be mounted on the sides of the water tank near the top at approximately 180 feet. The brackets and antennas will be painted to match the color of the tank to make them as visually unobtrusive as possible.

PCS provides for wireless telecommunications services using digital technology to incorporate wireless phone service, paging, data transmission and short messaging (e-mail) services into one hand held unit. The proposed system works on a line of sight objective, and this proposal at a height of 180 feet will reduce the necessary number of antenna sites in the area. The applicant will lease the necessary space on the silo and easements for access and utilities. The site will be accessed utilizing the existing southdown improvements off Ute Highway.

John E. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

REFERRAL RESPONSES

This docket was referred out to the standard referral agencies and all adjacent property owners within 500 feet of the proposal area. Referral responses are attached for your review.

The County Transportation Department, County Parks and Open Space Department, County Health Department, County Sheriff, County Treasurer, Long Rang Planning Division, City of Longmont, U.S. West, U.S. West Communications, Public Service Company, and one adjacent property owner have all responded as having no conflicts with this request.

CRITERIA ANALYSES

Article 4-602 of the Boulder County Land Use Code sets the standards and conditions of approval for a special review. Staff has analyzed this docket per these standards.

- (1) Complies with the minimum zoning requirements of the zoning district in which the use is to be established, and will also comply with all other applicable requirements;

The maximum height allowed in the General Industrial zoning district is 50 feet. This proposal is to attach an antenna on an existing structure at 180 feet and therefore requires Special Use Review. The uses and operations of the telecommunications facility, as defined in the Special Use application and this recommendation would become the defined limits, which means the violation of any condition, safeguard, or commitments of record shall be sufficient grounds for revocation of the Special Use, as noted in Section 4-602(B) of the Land Use Code. Staff finds that the proposed telecommunications facility does meet all required setbacks.

- (2) Will be in harmony with the character of the neighborhood and compatible with the surrounding area;

The subject site is a general industrial area currently utilized as a cement plant. The applicant will be utilizing an existing structure to be in harmony and compatible with the area.

- (3) Will be in accordance with the Boulder County Comprehensive Plan;

Staff has reviewed the Telecommunications Element of the Boulder County Comprehensive Plan and finds that the following applicable policies have been adequately addressed in this application:

Policy 9A.03 - *The County should accommodate adequate regional and community telecommunications facilities to serve the needs of governments, businesses and citizens of Boulder County while avoiding where possible or minimizing any negative impacts associated with telecommunications facilities.*

Policy 9A.04 - *The County should accommodate the use of current and evolving new telecommunications technologies.*

Policy 9A.05 - *The aesthetic and environmental quality of the County shall be given full consideration when locating, designing or upgrading any telecommunications facility so as to*

avoid any significant adverse impacts.

Policy 9A.06 - Consolidation of multiple telecommunications facilities onto common towers, when feasible and not otherwise detrimental, shall be strongly encouraged by Boulder County. Policy 9A.07 - When feasible, telecommunications facilities shall be located adjacent to, on or incorporated into existing or proposed buildings or other structures.

- (4) Will not result in an over-intensive use of land or excessive depletion of natural resources;

The proposed telecommunications facility will utilize an existing silo, and does not result in an over-intensive land or excessive depletion of natural resources.

- (5) Will not have a material adverse effect on community capital improvement programs;

No referral response received by staff indicates any conflicts with the proposal nor any adverse effect on community capital improvement programs.

- (6) Will not require a level of community facilities and services greater than that which is available;

No service provider has responded with an identified conflict or service issue, indicating that services are available and sufficient to meet the needs of the proposal.

- (7) Will not result in undue traffic congestion or traffic hazards;

The proposed telecommunications facility will be unmanned, only requiring one or two visits per month for routine maintenance. The proposal should not cause undue traffic congestion or traffic hazards.

- (8) Will not cause significant air, odor, water, or noise pollution;

The telecommunications facility will not require water or sanitation facilities.

- (9) Will not require amendment to the Regional Clean Water Plan;

This proposal will not require amendment to the Regional Clean Water Plan.

- (10) Will be adequately landscaped, buffered, and screened;

The antennas will be painted to match the color of the water tank, and the equipment will be located in a 200 square foot building, 8 feet in height, located on top of the silo. Due to the intensity of the existing site improvements, no significant impacts will result from this proposal.

- (11) Will not otherwise be detrimental to the health, safety, or welfare of the present or future inhabitants of Boulder County;

Staff feels that with appropriate conditions and the applicant's commitments of record, that the proposal will not be detrimental to the health, safety, or welfare of the present or future inhabitants of Boulder County.

Staff has also reviewed the following Special Provisions for Special Review for a Telecommunication Facility, per Section 4-603 (D) of the Boulder County Land Use Code:

- (a) *Alternative site and/or design studies provided by the applicant shall show that reasonable consideration has been given to such alternative sites and/or designs and the proposal is the most acceptable alternative to Boulder County.*
- (b) *The alternative of consolidation of multiple telecommunication facilities onto a single tower, either by use of an existing tower or moving existing facilities to the proposed tower, shall be studied by the applicant and, when feasible and not otherwise detrimental, shall be considered the preferred alternative.*
- (c) *When feasible, telecommunication facilities shall be located adjacent to, on, or incorporated into existing or proposed buildings or other structures.*
- (d) *Where a telecommunication system uses a network of facilities, the applicant shall demonstrate that a comprehensive approach for evaluating potential sites in Boulder County with a view to minimizing the number of sites required and any adverse impact has been taken.*
- (e) *Proposed landscaping and/or screening shall be in harmony with the character of the neighborhood and compatible with the surrounding area.*

The applicant notes that a comprehensive approach of a wireless telecommunication network is currently being designed by placing facilities, where possible, on existing structures. The overall number of facilities is in direct proportion to the topography and height of existing structures. The other alternative for the applicant would be to propose a new tower(s) in the area to accomplish their objectives. This proposal allows for minimizing the number of sites, and will be in harmony with the character of the neighborhood and compatible with the surrounding area.

PLANNING COMMISSION

The Planning Commission reviewed this proposal in a public hearing held on December 18, 1996. In this hearing no new information was provided, and no public spoke to the issue. A motion to recommend conditional approval per the staff recommendation was passed unanimously.

SUMMARY / RECOMMENDATION

Boulder County is concerned about the visibility of telecommunication facilities and the proliferation of these facilities. Staff has encouraged these telecommunication (PCS) providers to make every effort to alleviate these concerns. Based on the information provided, it would appear that the other potential option for Western Wireless would be to propose a new tower in the general area due to the line-of-site requirement.

The Comprehensive Plan policies do encourage the accommodation of evolving telecommunication technologies. The policies and County regulations also encourage consolidation of multiple telecommunication facilities, with an intent to reduce the total number of sites as much as feasibly possible. The height of the antennas at 180 feet proposed in this application will reduce the necessary number of antenna sites in the area. Staff would note that if the silo is ever removed, that the antennas may not be

SU-96-30 - Southdown Rooftop Antenna SU
BOCC - January 30, 1997
Page 5 of 5

replaced at a height of 180 feet.

Therefore, the Land Use staff recommends that the Planning Commission CONDITIONALLY APPROVE and recommend the Board of County Commissioners conditionally approve, Docket SU-96-30: Southdown, Inc. Roof Top Antenna Special Use, subject to the following conditions:

1. That the antennas and all support structures and wiring conduit be mounted as flush to the silo walls as possible, and painted to match the existing structure.
2. That the applicant submit a Development Agreement to be reviewed and approved by the County Attorney and Land Use staffs' prior to recording.
3. The applicant shall agree to allow collocation of other telecommunication providers if reasonable accommodations can be reached.
4. The applicant shall be subject to the terms, conditions, and commitments of record for Docket SU-96-30: Southdown, Inc. Rooftop Antenna.

GA\UDNL\SHARED\DKTS\M-2\SOUTHDOWN.BR

EXHIBIT A
LEGAL DESCRIPTION

PARCEL A:

A PARCEL OF LAND BEING A PORTION OF SECTIONS 21, 27 AND 28, TOWNSHIP 3 NORTH, RANGE 70 WEST OF THE SIXTH PRINCIPAL MERIDIAN, COUNTY OF BOULDER, STATE OF COLORADO, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE CENTER QUARTER CORNER OF SAID SECTION 21; THENCE S89°36'40"E ALONG THE NORTH LINE OF THE SOUTHEAST QUARTER A DISTANCE OF 1317.02 FEET TO THE NORTHEAST CORNER OF THE NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 21; THENCE S 00°22'21"W ALONG THE EAST LINE OF SAID NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 21 A DISTANCE OF 1321.77 FEET TO THE NORTHWEST CORNER OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 21; THENCE S89°40'39"E ALONG THE NORTH LINE OF SAID SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 21 A DISTANCE OF 330.00 FEET TO THE POINT OF BEGINNING; THENCE CONTINUING S89°40'39"E ALONG SAID NORTH LINE A DISTANCE OF 990.27 FEET TO THE NORTHEAST CORNER OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 21; THENCE S00°14'01"W AND ALONG THE EAST LINE OF SAID SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 21 A DISTANCE OF 1319.87 FEET TO THE NORTHEAST CORNER OF SAID SECTION 28; THENCE S00°23'41"W ALONG THE EAST LINE OF THE NORTHEAST QUARTER OF SAID SECTION 28 A DISTANCE OF 1319.83 FEET TO THE NORTHEAST CORNER OF THE SOUTHEAST QUARTER OF THE NORTHEAST QUARTER OF SAID SECTION 28; THENCE S89°41'09"E A DISTANCE OF 330.04 FEET; THENCE S00°23'41"W A DISTANCE OF 1319.83 FEET; THENCE N89°41'09"W A DISTANCE OF 331.72 FEET TO THE EAST QUARTER CORNER OF SAID SECTION 28; THENCE N59°41'09"W A DISTANCE OF 921.07 FEET; THENCE N89°41'09"W A DISTANCE OF 194.30 FEET; THENCE N00°22'21"E A DISTANCE OF 3499.13 FEET TO THE POINT OF BEGINNING.

PARCEL B:

A PARCEL OF LAND BEING A PORTION OF THE SOUTH HALF OF SECTION 21 AND THE NORTH HALF OF SECTION 28, TOWNSHIP 3 NORTH, RANGE 70 WEST OF THE SIXTH PRINCIPAL MERIDIAN, COUNTY OF BOULDER, STATE OF COLORADO, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE CENTER QUARTER CORNER OF SAID SECTION 21; THENCE S89°36'40"E ALONG THE NORTH LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 21 A DISTANCE OF 1317.02 FEET TO THE NORTHEAST CORNER OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 21; THENCE S00°22'21"W ALONG THE EAST LINE OF SAID SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER OF SAID SECTION 21 A DISTANCE OF 983.49 FEET TO THE POINT OF BEGINNING; THENCE CONTINUING S 00°22'21"W ALONG SAID EAST LINE A DISTANCE OF 338.29 FEET TO THE NORTHWEST CORNER OF THE SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 21; THENCE S89°40'39"E ALONG THE NORTH LINE OF SAID SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 21 A DISTANCE OF 330.00 FEET; THENCE S00°22'21"W A DISTANCE OF 3499.13 FEET; THENCE N89°41'09"W A DISTANCE OF 515.00 FEET; THENCE N00°22'21"E A DISTANCE OF 3930.02 FEET; THENCE S63°05'49"E A DISTANCE OF 206.78 FEET TO THE POINT OF BEGINNING.

Except that portion of the above described properties conveyed to the County of Boulder in Deed recorded February 1, 1999 at Reception No. 1900352.

Mobile Mini,® Inc.

CUSTOM SPJ

8'-0" W x 16'-0" L x 8'-6" H

OPEN BAY OFFICE

VOICESTREAM WIRELESS

COLORADO

Mobile Mini, Inc.

WARNING: CONFIDENTIAL DRAWINGS
COPYRIGHT 1996 MOBILE MINI, INC.

VOICESTREAM WIRELESS

8'-0" W x 16'-0" L x 8'-6" H

COVER SHEET, SHEET
INDEX & BUILDING DATA

REVIEW BY: D. KILMAN
SCALE: 1/8" = 1'-0"
DATE: 10/10/96

SHEET

0

2X-0303

BUILDING DATA	APPLICABLE CODES	SHEET INDEX
OCCUPANCY (SBC): B	COLORADO	0 COVER SHEET, SHEET INDEX & BUILDING DATA
OCCUPANCY (UBC): B-2	1997 UBC	1 SYMBOLS, NOTES & DEFINITIONS
TYPE OF CONST. (SBC): 4 - UNPROTECTED	1997 IMC	2 FLOOR PLAN W/ SCHEDULES
TYPE OF CONST. (UBC): II-N	1997 IPC	3 EXTERIOR ELEVATIONS
OCCUPANCY LOAD: N/A	1996 NEC	4 INTERIOR ELEVATIONS
WIND LOAD: 80 mph	1993 CABO	5 ELECTRICAL PLAN W/ SCHEDULES
DESIGN WIND PRESS. LOAD: 22.6 psf	1997 UNIFORM BUILDING CODE STANDARDS	6
FLOOR LIVE LOAD: (125 psf DESIGN/450 psf CAP.)		7
ROOF LIVE LOAD: (20 psf DESIGN/165 psf CAP.)		8
SEISMIC ZONE: 2B		9
SQUARE FOOTAGE: 1280		10
APPROVALS		11
STRUCTURAL APPROVAL: AS SHOWN	IMPORTANT NOTE: ALL DRAWINGS AND SPECIFICATIONS CONTAINED HEREIN SUPERCEDE ALL OTHER DRAWINGS AND SPECIFICATIONS WRITTEN AND/OR VERBAL	12
ELECTRICAL SYSTEMS: AS SHOWN (IF APPLICABLE)		13
PLUMBING SYSTEMS: AS SHOWN (IF APPLICABLE)		14
MECHANICAL SYSTEMS: AS SHOWN (IF APPLICABLE)		15

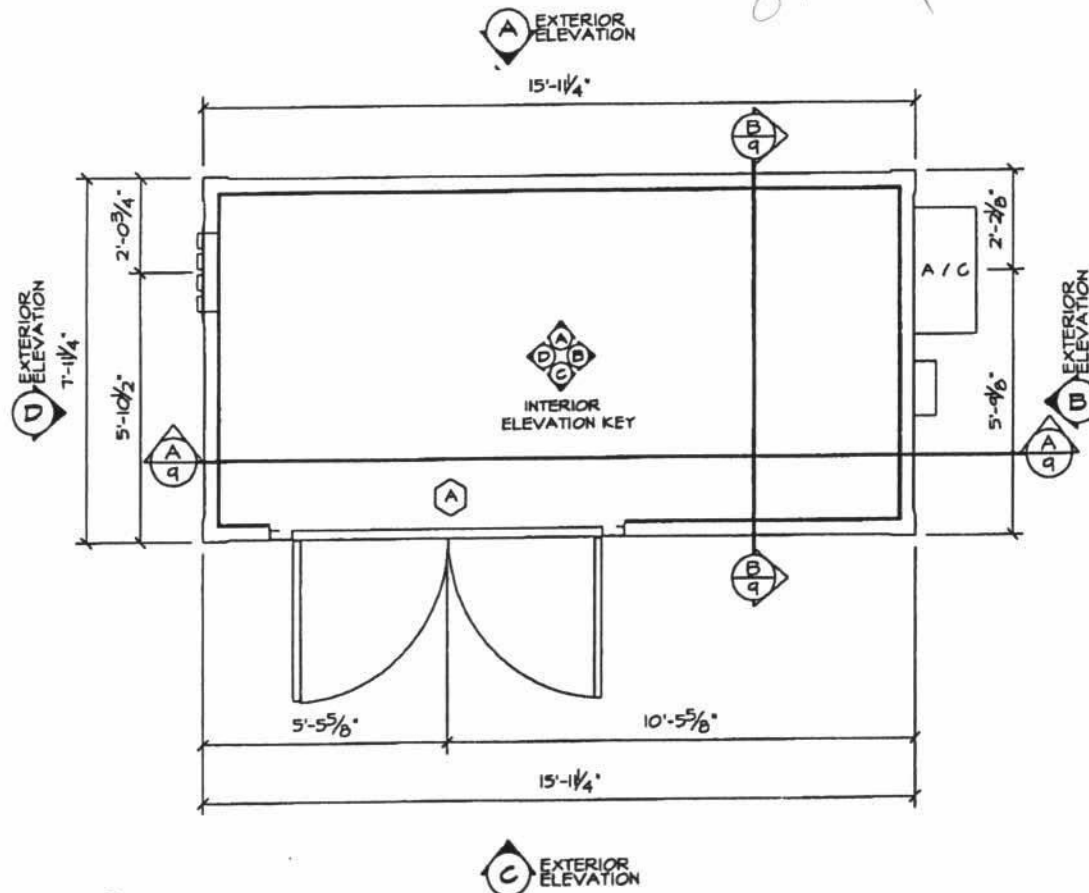
WAVE GUIDE SCHED.

SYN	PART NO.	SIZE	FRAME COLOR	ROUGH OPENING	QTY	REMARKS
1	8110	25 1/2" x 25 1/2"	MILL FINISH	20 1/2" x 15"	1	

NOTE:

THIS UNIT MUST BE ASPHALT UNDERCOATED.

8x16 = 128



FINISH SCHEDULE

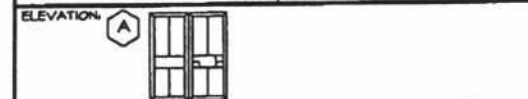
ROOM NAME	FLOOR	WALLS	CEILING	BASE	LEGEND
EQUIPMENT ROOM		1/2" COMMERCIAL VET	1/2" GOK PLTWOOD	1/2" GOK PLTWOOD	1/2" GOK PLTWOOD

DOOR SCHEDULE

SYN	SIZE	THICK	DOOR	FRAME	JAMB	FINISH	HRDWARE	QTY	ROUGH OPENING
1	8080	2"	STL	MHI	STL	MHI	N/A	1	83 1/4" x 92"

HARDWARE GROUPS:
1. DISC LOCK

FINISH GROUPS:
1. ALL HARDWARE TO BE 260
FINISH DOOR & DOOR JAMB
TO BE PAINTED WITH ENAMEL
PER COLOR SCHEDULE.



WALL LEGEND

3 5/8" x 16 ga. EXTERIOR STUDWALL PANEL SYSTEM WITH R-11 INSULATION

COLOR SCHEDULE

INTERIOR WALLS:	NAVAJO WHITE
INT. SIDE OF EXT. DOORS:	MHI BEIGE
INT. SIDE OF EXT. DOOR JAMBS:	MHI BEIGE
INTERIOR DOORS:	N/A
INTERIOR DOOR JAMBS:	N/A
V.C.T. TILE:	ARMSTRONGS SH11
TILE COVE BASE:	BLACK
CARPET:	N/A
CARPET COVE BASE:	N/A
ROLLED GOODS:	N/A
ROLLED GOODS COVE BASE:	N/A

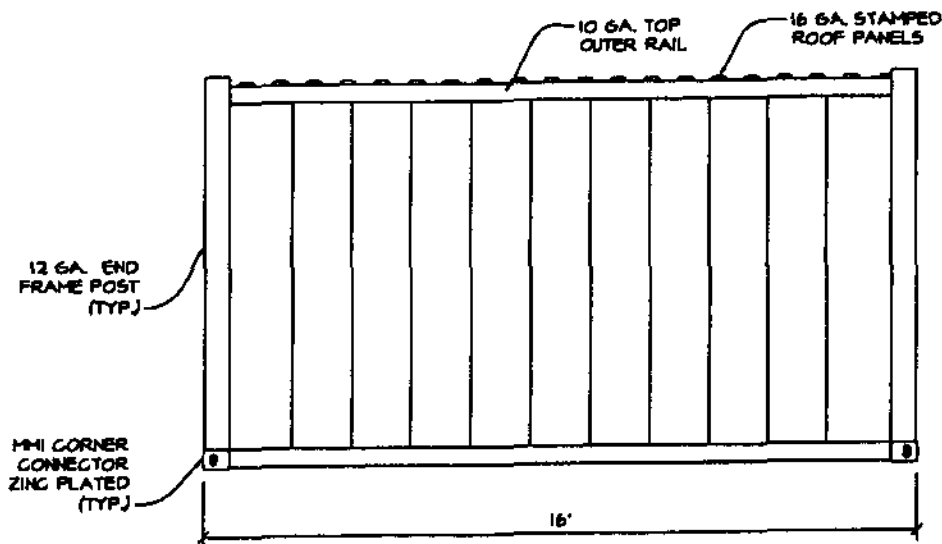
COLOR SCHEDULE

BODY:	MHI BEIGE
BASE FRAME:	MHI BEIGE
OUTER CORNER POSTS:	MHI BEIGE
PASCIA:	N/A
GUTTER:	N/A
DOWNSPOUTS:	N/A
ROOF:	MHI BEIGE
EXT. SIDE OF EXT. DOOR:	MHI BEIGE
EXT. SIDE OF EXT. DOOR JAMB:	MHI BEIGE
WINDOW TRIM:	MHI BEIGE

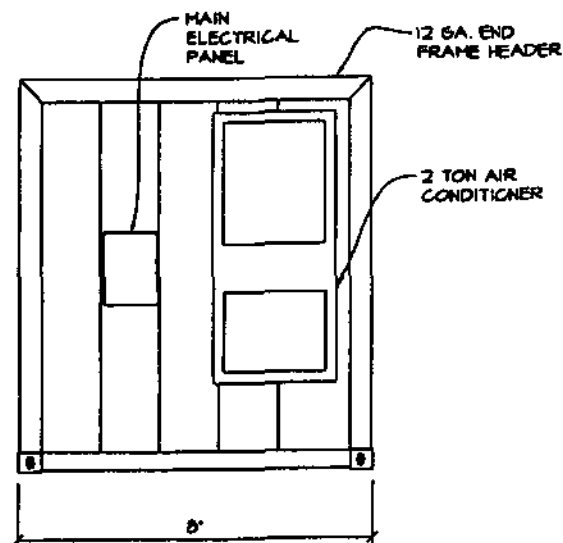
Mobile Mini, Inc.
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VOICESTREAM WIRELESS
8'-0" W x 16'-0" L x 8'-6" H
FLOOR PLAN

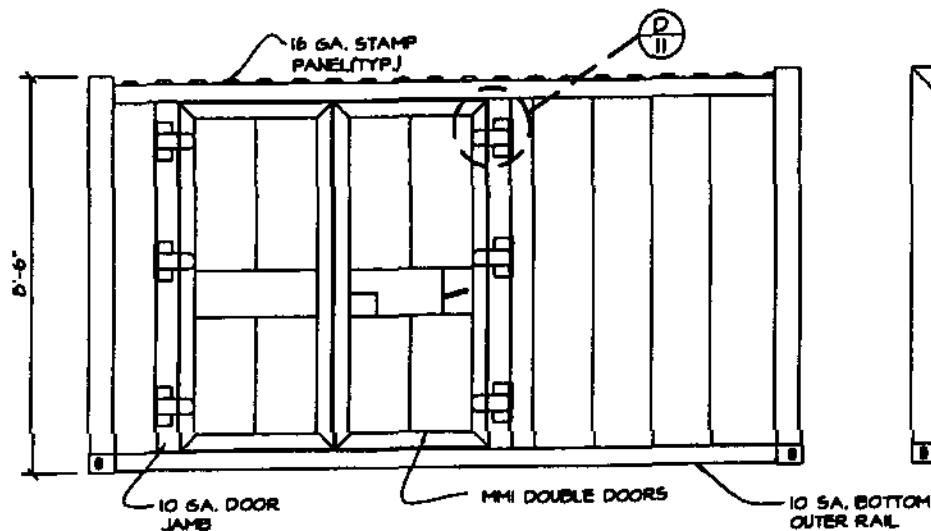
DESIGN BY: D. KILHAM
DATE: 7/1/00
SCALE: 1/4" = 1'-0" BL
PROJECT: 010480
SHEET
2
ZX-0503



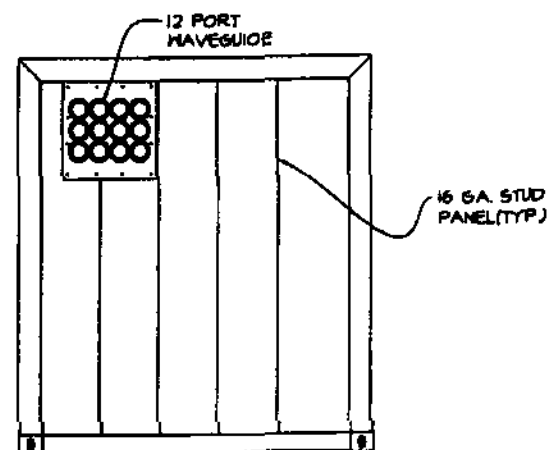
EXTERIOR ELEVATION A



EXTERIOR ELEVATION B



EXTERIOR ELEVATION C

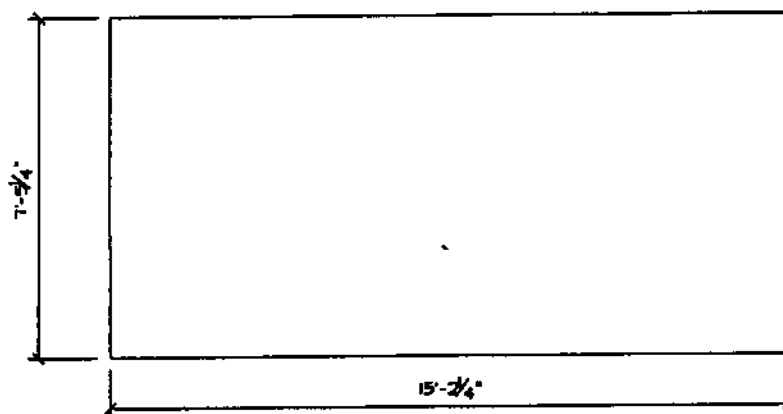


EXTERIOR ELEVATION D

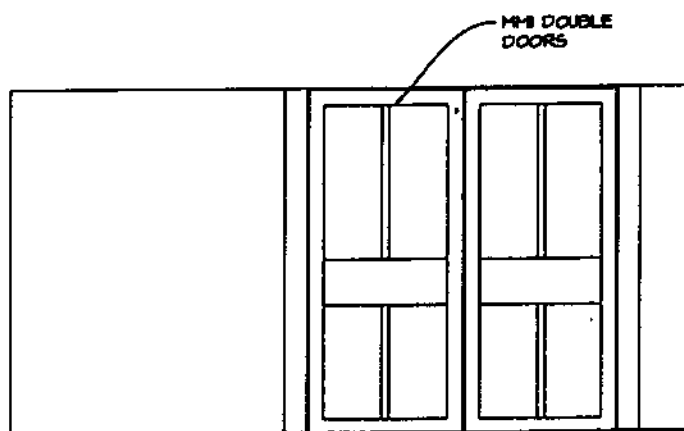
Mobile Mini, Inc.
 WARNING—CONFIDENTIAL DRAWINGS
 COPYRIGHT 1988 MOBILE MINI, INC.

VOICESTREAM WIRELESS
 8'-0" W x 16'-0" L x 8'-6" H
 EXTERIOR
 ELEVATIONS

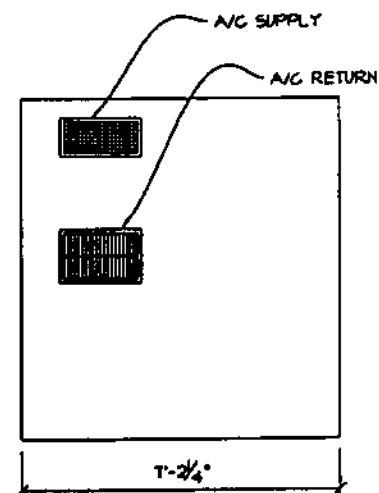
DATE: 11/11/88
 BY: R. KELLY
 1/4" = 1'-0" SCALE
 SHEET
 3
 1X-0808



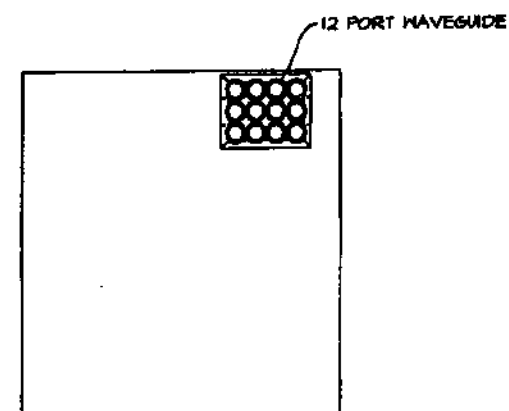
INTERIOR ELEVATION A



INTERIOR ELEVATION C



INT. ELEVATION B



INT. ELEVATION D

Mobile Mini, Inc.
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VOICESTREAM WIRELESS
 8'-0" W x 16'-0" L x 8'-6" H

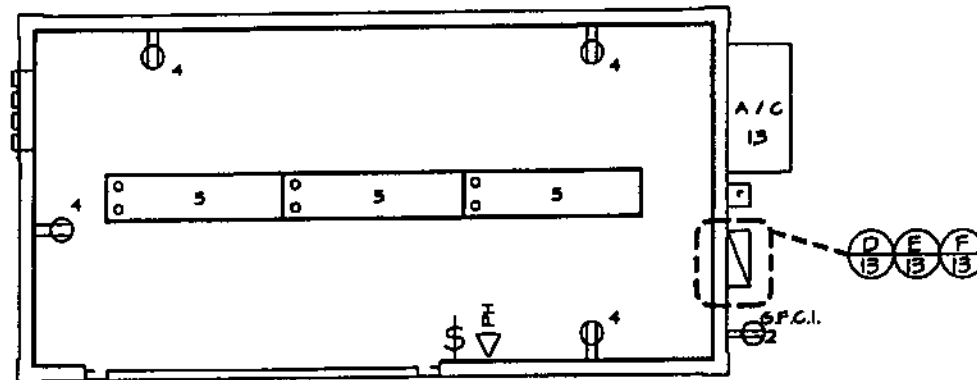
**INTERIOR
 ELEVATIONS**

DATE: 11/1/88
 BY: R. KILHAM
 CHECKED BY: J. P. B. JR.
 RESPONSIBLE:

SHEET

4

PROJECT: EX-0803



FIXTURE SCHEDULE

SYMBOL	DESCRIPTION	COLOR	QTY
RACEWAY	EMT(THIN COPPER WIRE)	N/A	N/A
	200AMP 240/120 VOLT 1 PHASE 16 SPACE 4IN RAIN TIGHT SURFACE MOUNTED LOAD CENTER WITH 200 AMP MAIN BREAKER MOUNTED @ 60" ABOVE BOTTOM OF END RAIL	N/A	1
\$	METAL 4x4 BOX WITH MJD RING & 15A SINGLE POLE SWITCH WITH COVER PLATE MOUNTED @ 42" A.F.F.	IVORY	1
	METAL 4x4 BOX WITH MJD RING & 15A DUPLEX RECEPTACLE WITH COVER PLATE MOUNTED @ 15" A.F.F.	IVORY	4
	METAL 4x4 BOX WITH MJD RING & 15A GFI RECEPT WITH MTR. PROOF COVER PLATE MOUNTED @ 42" A.F.F.	N/A	1
	METAL 4x4 BOX WITH MJD RING & 15A SINGLE POLE SWITCH WITH CVR. PLATE STUB TO EXT. J-BOX MT. @ 42" A.F.F.	IVORY	1
	METAL 4x4 EXTERIOR J-BOX WITH CVR. STUBBED TO INTERIOR PHONE JACK MOUNTED @ 42" A.F.F.		
	1' x 4' 2-TUBE FLUORESCENT LIGHT FIXTURE SCREWED TO CEILING (DIRECT WIRED)	WHITE	2
	HANJAL THERMOSTAT MOUNTED @ 42" ABOVE FINISHED FLOOR (LOCATIONS MAY VARY).	WHITE	1
	2 - TON ELECTRIC A/C UNIT W/ 10 KW HEAT STRIP(BARD)	N/A	1

ELECTRICAL SCHEDULE

DESCRIPTION	CIR.	BKR.	A	H-S	H-S	B	BKR.	CIR.	DESCRIPTION
2 TON AC	1	60	2000	180	6 W	2.6	20	2	GFCI RECEPTACLE (1)
	3	2	X	10	6	12 H	20	4	RECEPTACLES (4)
FLUORS. LIGHTS (3)	5	20	519	12 W	12.6	X		6	
	7	20	X					8	
	4					X		10	
	11		X					12	

LOAD CALCULATIONS

GENERAL LIGHTING:	
120sq. ft. x 3.5 x 1.25	= 560w
HVAC:	
1 @ 10000w	= 10000w
RECEPTACLES:	
5 @ 180w	= 900w
TOTAL	= 11,460w / 240V = 47.8 AMPS

Mobile Mini, Inc.

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VOICESTREAM WIRELESS
8'-0" W x 16'-0" L x 8'-6" H

ELECTRICAL
PLAN

DATE: 11/11/03
BY: J. K. KILMAN
CHECKED: J. K. KILMAN
DESIGNED: J. K. KILMAN

SHEET

5

ZK-0309



Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex

2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

DATE: August 28, 2000

OWNER NAME: '

FILE NO.: BP-0-1207

PROJECT ADDRESS: 5134 UTE HW

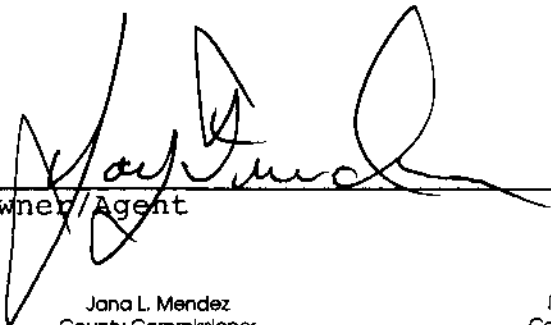
PROJECT DESCRIPTION: CELLULAR ANTENNA SITES

APPROVED PLANS AND REVIEW LIST

I have read the Boulder County Building Department plan review list that was prepared for my building project and attached to the approved building plans. I understand that my building project must comply with all applicable code requirements.

I also understand that this plan review list and the approved plans must be kept on the job site, and must be available to the inspector when inspections are made.

I further understand that not having the approved plans and review list on the job site may result in no inspection being made and a reinspection fee being charged.


Owner/Agent

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

PAID DATE PAID 28 AUG 2000 BOULDER COUNTY BUILDING DIV.
--



BUILDING PERMIT

LAND USE DEPARTMENT • BUILDING SAFETY & INSPECTION SERVICES DIVISION
 Courthouse Annex • 2045 13th Street • 13th & Spruce Streets
 R.O. Box 471 • Boulder, Colorado 80306

441-3925

FILE NUMBER BP - 00 - 1207

PROJECT LOCATION

PROJECT ADDRESS 5134 UTE HW			UNIT NUMBER	CITY LY	ZIP CODE 80540
LOT	BLOCK	SUBDIVISION NAME UNPLATTED	SECTION 28	TOWNSHIP 3N	RANGE 70

OWNERSHIP

OWNER'S NAME SOUTHDOWN INC 5134 UTE HWY			CONTRACTOR'S/AGENTS NAME & ADDRESS NEW CC INC 1100 E 64TH AV		
CITY LONGMONT	STATE XO	ZIP CODE 80503	CITY DENVER	STATE CO	ZIP CODE 80229
DAY PHONE (303)-823-2114		NIGHT PHONE (303)-823-2131	DAY PHONE (303)-941-0988		NIGHT PHONE

STRUCTURE DATA

ACTIVITY CODE 04	DESCRIPTION CODE 15																																																				
OCCUPANCY GROUP U1	TYPE OF CONSTRUCTION	STORIES 1	HEIGHT (FT)																																																		
SNOW LOAD 30	NO. NEW BEDROOMS	NO. NEW BATHS																																																			
BASEMENT		FINISHED (SQ. FT.) 0	UNFINISHED (SQ. FT.) 0																																																		
1st FLOOR		FINISHED (SQ. FT.) 128	UNFINISHED (SQ. FT.) 0																																																		
2nd FLOOR		FINISHED (SQ. FT.) 0	UNFINISHED (SQ. FT.) 0																																																		
ALL OTHER FLOORS		FINISHED (SQ. FT.) 0	UNFINISHED (SQ. FT.) 0																																																		
		FINISHED (SQ. FT.)	UNFINISHED (SQ. FT.)																																																		
TOTAL(S)		FINISHED (SQ. FT.) 128	UNFINISHED (SQ. FT.) 0																																																		
GARAGE (SQ. FT.)		GREENHOUSE (SQ. FT.)																																																			
		<table border="1"> <tr> <td>SETBACK FRONT FT</td> <td>SETBACK SIDE FT</td> <td>SETBACK REAR FT</td> <td>VALUATION \$ 106,963</td> </tr> <tr> <td colspan="3">ZONING DISTRICT(S) GI</td> <td>PROPERTY SIZE ACRE(S)</td> </tr> <tr> <td colspan="3">TAX I.D. NUMBER 53049</td> <td>DEED NUMBER 1756839</td> </tr> <tr> <td colspan="3">PARCEL NUMBER 120328000001</td> <td>ACCESS PERMIT NUMBER</td> </tr> <tr> <td colspan="3"></td> <td>PERMIT FEE \$ 720.00</td> </tr> <tr> <td colspan="3"></td> <td>PLAN CHECK FEE \$ 240.00</td> </tr> <tr> <td colspan="3"></td> <td>ACCESS FEE \$.00</td> </tr> <tr> <td colspan="3"></td> <td>FEE \$</td> </tr> <tr> <td colspan="3"></td> <td>FEE \$</td> </tr> <tr> <td colspan="3">Use and Recycling Taxes:</td> <td>FEE \$ 213.92</td> </tr> <tr> <td colspan="3"></td> <td>FEE \$</td> </tr> <tr> <td colspan="3">RECEIPT NUMBER 29694</td> <td>TOTAL FEES PAID \$ 1,173.92</td> </tr> </table>				SETBACK FRONT FT	SETBACK SIDE FT	SETBACK REAR FT	VALUATION \$ 106,963	ZONING DISTRICT(S) GI			PROPERTY SIZE ACRE(S)	TAX I.D. NUMBER 53049			DEED NUMBER 1756839	PARCEL NUMBER 120328000001			ACCESS PERMIT NUMBER				PERMIT FEE \$ 720.00				PLAN CHECK FEE \$ 240.00				ACCESS FEE \$.00				FEE \$				FEE \$	Use and Recycling Taxes:			FEE \$ 213.92				FEE \$	RECEIPT NUMBER 29694			TOTAL FEES PAID \$ 1,173.92
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			FEE \$																																																		
			FEE \$																																																		
Use and Recycling Taxes:			FEE \$ 213.92																																																		
			FEE \$																																																		
RECEIPT NUMBER 29694			TOTAL FEES PAID \$ 1,173.92																																																		

SERVICES

WATER NOT KNOWN	FIRE HYGIENE
ELECTRIC POUDRE VALLEY REA	SEWER NOT KNOWN

DETAILS

GAS NOT KNOWN	GRADING	SIGN AREA (SQ. FT.)
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REMARKS

THIS PERMIT MUST COMPLY W/ CONDITIONS FOR DOCKET SU-96-30 ALL WORK AS PER APPLICABLE PROVISIONS OF THE 1997 UBC, 1997 UMC, 1999 NEC, 1994 UPC & BOULDER COUNTY AMENDMENTS.

APPROVED BY CHIEF BUILDING OFFICIAL Gerald D. George	DATE OF ISSUE August 28, 2000
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The approval of plans and specifications does not permit the violation of any section of the Boulder County Building code or other Ordinance or State Law.
 • FIELD INSPECT TO CODE •

• NOTICE •
 This permit not valid without Official "PAID" Stamp from the Building Division. Permit shall become null and void if construction is not commenced within 180 days or if work is suspended or abandoned for a period of 180 days at any time after the work is commenced.

INSPECTION RECORD

ROUGH INSPECTIONS					
INSPECTION	DATE APPROVED	INSPECTOR	COMMENTS	INSPECTOR	DATE
FOOTINGS/PADS					
ZONING SETBACKS					
FOUNDATION WALLS AND REINFORCING					
DAMPPROOFING (FOR BASEMENTS ONLY)					
UNDERGROUND ELECTRIC					
UNDERGROUND PLUMBING AND PRESSURE TEST					
UNDERGROUND GAS PIPING AND PRESSURE TEST					
SPRINKLER PLANS APPROVAL					
ROUGH FIRE SPRINKLER					
HEIGHT SURVEY					
ROUGH ELECTRIC					
ROUGH PLUMBING & PRESSURE TEST					
ROUGH GAS PIPE & PRESSURE TEST					
ROUGH HEATING & VENTILATION					
ROUGH FRAMING					
INSULATION					
WALLBOARD					
OTHER					

REQUIREMENTS BEFORE FINAL INSPECTION OR CERTIFICATE OF OCCUPANCY FOR NEW RESIDENCES AND COMMERCIAL BUILDINGS				
REQUIRED APPROVALS	PHONE	DATE APPROVED	COMMENTS	BY
Boulder County Transportation Department	303.441.3900			
Boulder County Health Department - Septic	303.441.1190			
Boulder County Site Plan Review	303.441.3930			
Boulder County Historical Review	303.441.3930			
Residential Fire Sprinklers (Local Fire District)				
Fire District (Commercial) (Local Fire District)				

FINAL BUILDING INSPECTIONS					
INSPECTION	DATE APPROVED	INSPECTOR	COMMENTS	INSPECTOR	DATE
GRADING & DRAINAGE					
FINAL FRAMING					
ELECTRICAL FIXTURES	12-5-00	Rut			
PLUMBING FIXTURES					
FINAL HEATING & VENTILATION					
OTHER					
FINAL BUILDING INSPECTION COMPLETE	12-5-00	Rut			

METER RELEASES						
INSPECTION	DATE APPROVED	INSPECTOR	AGENCY	CONTACT	DATE OF RELEASE	STAFF ONLY
TEMPORARY CONSTRUCTION ELECTRIC METER RELEASE						
FINAL ELECTRIC METER RELEASE	12-5-00	Rut	P.U.	Domer	12-6-00	Rut
GAS METER RELEASE						